

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution 32-008
Amendments to Title 3 of the Chickasaw Nation Code
(Beverage Control Act of 2007)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for alcoholic beverage licensing known as the Beverage Control Act of 2007; and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted Chickasaw Nation Code Title 5, Chapter 15, Article F; and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 5 and Title 3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

“SECTION 3-201.1 **TITLE.**

Be it enacted by the Tribal Legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Beverage Control Act of 2007" (hereinafter "Act"), **as amended**. This Act is enacted by the Chickasaw Tribal Legislature under the authority of Article VI, Section 1 and Article VII, Section 4 of the Constitution of the Chickasaw Nation, wherein the Legislature is required to prescribe procedures and regulations pertaining to the Chickasaw Nation.

SECTION 3-201.2 **FINDINGS.**

The Legislature finds that:

2. it is necessary to establish legal authority for the Chickasaw Nation, its agents, ~~servants and employees~~**servants, employees, and licensees** to engage in Alcoholic Beverage sales on tribal lands within the legal boundaries of the Chickasaw Nation, provided that such locations are in compliance with the laws of the State of Oklahoma.

SECTION 3-201.5**INSPECTION RIGHTS.**

The premises on which beverages defined in this Act are sold or distributed shall be open for inspection by the Chickasaw Nation Tax Commission and/or its staff agents at all reasonable times for the purposes of ascertaining compliance with the rules and regulations of the Chickasaw Nation Tax Commission and this Act.

SECTION 3-201.7**LICENSING AND APPLICATION.**

A. In order to control the proliferation of establishments on Tribal Lands that Sell or serve liquor by the bottle or by the drink, all persons or entities that desire to Sell beverages as defined in this Act on Tribal Lands must apply to for and receive from the Chickasaw Nation Tax Commission for such a license under this Act. A person desiring to serve Alcoholic Beverages as defined by this Act on Tribal Lands must apply for and receive from the Chickasaw Nation Tax Commission a license under this Act.

B. Any person or entity applying for a license to Sell or serve beverages as defined in this Act on Tribal Lands must fill in the application provided for this purpose by the Chickasaw Nation Tax Commission and pay such application fee as may be set by the Chickasaw Tax Commission. Said applications must be filled out completely in order to be considered.

1. Any person 21 years of age or older or entity that is owned or controlled by an individual 21 years of age or older may apply to the Chickasaw Nation Tax Commission for a license to Sell beverages as defined in this Act on Tribal Lands. A separate application and license will be required for each location where the applicant intends to Sell beverages as defined by this Act.

2. Any person 18 years of age or older, may apply to the Chickasaw Nation Tax Commission for a license to serve Alcoholic Beverages as defined in this Act. Provided, no person under 21 years of age may be employed in the selling or handling of Alcoholic Beverages or serve in designated bar or lounge areas.

~~B. Any citizen of the Chickasaw Nation 21 years of age or older, or an enrolled citizen of a federally-recognized tribe 21 years of age or older, other person 21 years of age or older or entity that is owned or controlled by an individual 21 years of age or older may apply to the Chickasaw Nation Tax Commission for a license to Sell or serve beverages as defined in this Act on Tribal Lands. Any person or entity applying for a license to Sell or serve beverages as defined in this Act on Tribal Lands must fill in the application provided for this purpose by the Chickasaw Nation Tax Commission and pay such application fee as may be set by the Chickasaw Nation Tax Commission. Said application must be filled out completely in order to be considered. A separate application and license will be required for each location where the applicant intends to serve beverages as defined in this Act.~~

C. ~~The person applying for such license~~Any person who holds a license pursuant to Section 3-201.7(b)(1) or (2) of this Act must at a minimum make a showing once a every two years, and must satisfy the Chickasaw Nation Tax Commission, that he is a person of good character, having never been convicted of violating any of the state Alcoholic Beverage laws or the laws promulgated under this Act; that he has never been convicted of violating any of the gambling laws of Oklahoma, or any other state of the United States, or of this or any other tribe; that he has not had, preceding the date of his application for a license, a felony conviction of any of the laws commonly called prohibition laws; and that he has not had any permit or license to Sell any intoxicating liquors revoked in any county of Oklahoma, or any other state, or of any tribe; and that at the time of his application for a license, he is not the holder of a retail liquor dealer's permit or license from the United States government to engage in the Sale of beverages as defined in this Act.

D. The Chickasaw Nation Tax Commission shall receive and process applications and related matters. All actions relating to applications by the Chickasaw Nation Tax Commission shall be by majority vote. The Chickasaw Nation Tax Commission may, by resolution, authorize one of its members or ~~it's a member of its staff to~~ agent to issue licenses for the Sale of beverages as defined in this Act.

E. Each license shall be issued for a period not to exceed ~~one~~ two (+2) years from the date of issuance.

F. A licensee may renew its license if the licensee has complied in full with this Act; provided, however, that the Chickasaw Nation Tax Commission ~~or its agent~~ may refuse to renew a license if it finds that doing so would not be in the best interests of health and safety of the residents of the Chickasaw Nation.

G. The Chickasaw Nation Tax Commission ~~or its agent~~ may suspend or revoke a license due to one or more violations of this Act upon notice and hearing at which the licensee is given an opportunity to respond to any charges against it and to demonstrate why the license should not be suspended or revoked.

SECTION 3-201.9

RULES, REGULATIONS AND ENFORCEMENT.

G. ~~Except for persons possessing a valid license to serve beverages at designated locations as set forth in this Act, the following prohibitions shall apply:~~

1. No person under the age of twenty-one (21) years shall consume; ~~or acquire or have in his possession~~any beverages as defined in this Act; ~~provided, no person under the age of twenty-one (21) years shall have in his possession~~ Alcoholic Beverages as defined in this Act. No person shall permit any other person under the age of twenty-one (21) years to consume beverages as defined in this Act on his premises or any premises under his control. Any person violating this prohibition shall be guilty of a separate violation of this Act for each and every drink so consumed.

~~H2.~~ Any person who shall Sell or provide any beverages as defined in this Act to any person under the age of twenty-one (21) years shall be guilty of a violation of this Act for each and every Sale or drink provided; ~~provided, nothing in this Section shall be construed to criminalize the selling of Low-Point Beer by persons eighteen (18) years of age or older who (a) are employed by a licensed retailer of Low-Point Beer; and (b) make such sale in accordance with this Act.~~

~~I3.~~ Any person who transfers in any manner an identification of age to a person under the age of twenty-one (21) years for the purpose of permitting such person to obtain beverages as defined in this Act shall be guilty of an offense; provided, that corroborative testimony of a witness other than the underage person shall be a requirement of finding a violation of this Act.

~~J4.~~ Any person who attempts to purchase beverages as defined in this Act through the use of false or altered identification that falsely purports to show the individual to be over the age of twenty-one (21) years shall be guilty of violating this Act.

~~K.H.~~ Any person who is convicted or pleads guilty to a violation of this Act shall be punished by imprisonment for not more than one (1) year, a fine not to exceed five thousand dollars (\$5,000) or a combination of both penalties. In addition, if such person holds a license issued by the Chickasaw Tax Commission, the license shall be revoked.

~~L.I.~~ When requested by the provider of beverages as defined in this Act any person shall be required to present official documentation of the bearer's age, signature and photograph. Official documentation includes one of the following:

1. driver's license or identification card issued by any state department of motor vehicles;
2. United States Active Duty Military Identification card;
3. tribally-issued identification card; or
4. passport.

~~M.J.~~ The consumption of beverages as defined in this Act on premises where such consumption or possession is contrary to the terms of this Act will result in a declaration that such beverages as defined in this Act are contraband. Any tribal agent, employee or officer who is authorized by the Chickasaw Nation Tax Commission shall seize all contraband and preserve it in accordance with provisions established for the preservation of impounded property. Upon being found in violation of this Act, the party owning or in control of the premises where contraband is found shall forfeit all right, title and interest in the items seized which shall become the property of the Chickasaw Nation Tax Commission.

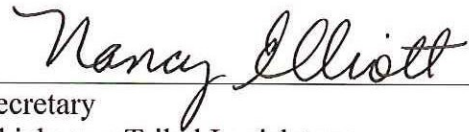
SECTION 5-1506.35POSSESSION, PURCHASE, AND CONSUMPTION BY
PERSONS UNDER TWENTY-ONE (21) YEARS OF AGE.

C. Nothing in this Section shall be construed to criminalize possession of an Alcoholic Beverage by a person who is at least eighteen (18) years of age and who is in possession of an Alcoholic Beverage solely and exclusively for the purpose of serving such Alcoholic Beverage within the scope of a license from the Chickasaw Nation Tax Commission.”

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 18, 2015, by a vote of 11 ayes, 0 nays, and 0 abstentions.

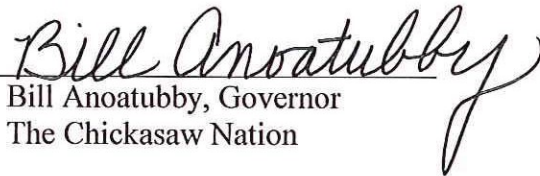


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

SEP 21 2015

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Explanation: This resolution amends Title 5 and Title 3 of the Chickasaw Nation Code to reduce the minimum age requirements for serving Alcoholic Beverages within the Chickasaw Nation from 21 to 18 in certain settings which would be in compliance with state law.

Presented by: Legislative Committee